

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 23, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Roybal moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on September 9, 2024. Motion (per Consent Agenda) carried.

ORDINANCE – 2nd READING – Amending the Unified Development Code (UDC) of the City of Cheyenne, Wyoming, to create BP Business Park Zone District and making conforming amendments to locations throughout the UDC referencing zone districts; and amending the UDC to correct references associated with the SS Support Services District. Reporting for Public Services Committee, Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Scenic Development, 5th Filing, City of Cheyenne, Laramie County, Wyoming (located west of Converse Avenue and north of Dell Range Boulevard). Mr. Roybal advised there was no recommendation from Public Services Committee. Mr. Roybal moved to adopt, seconded by Dr. Rinne. Dr. Rinne moved to amend by removing condition 2(b) and renumber condition 2(c) to 2(b) and amend to say - Pedestrian easement shall be added to the site during Phase I or Phase II to make connection of Carlson with Walmart, seconded by Mr. Roybal. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins, Mr. Johnson and Mr. Segrave voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson and Mr. Segrave voting “no”. Public comment was made by: Jayden Smith, Wasatch Development Group. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson, Mr. Laybourn, Dr. Rinne and Mr. Segrave. (#6425)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Andiamo Subdivision Second Filing, City of Cheyenne, Laramie County, Wyoming (located southeast of the intersection of West 19th Street and O’Neil Avenue). Mr. Roybal moved to adopt, seconded by Mr. White. Mr. Roybal moved to amend to include the following conditions: 1) prior to signing of the plat, a letter with all utilities signing off on the vacation of the alley be provided

and 2) prior to recording, have the land ownership and the owners listed on the face of the plat match, seconded by Dr. Rinne. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. Public comment was made by: Brad Emmons, AVI. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook, Mr. Johnson, Mr. Laybourn, Dr. Rinne and Mr. Segrave. (#6426)

RESOLUTION – Granting an exception to the ‘201 Agreement’ for the owner of the property located at 4614 East Pershing Boulevard to allow installation of a small wastewater system (septic system). Mr. Roybal moved to adopt, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook and Mr. Segrave voting “no”. Public comment was made by: James O’Connor, landowner. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson, Dr. Rinne and Mr. Segrave. (#6427)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2024 Budget of the City of Cheyenne according to the provisions of W.S §§ 16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor – Dr. Aldrich)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2025 Budget of the City of Cheyenne according to the provisions of W.S §§ 16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor – Dr. Aldrich)

[CA] RESOLUTION – Expressing the support of the Governing Body for the City Engineer to execute certain temporary construction easements on behalf of the City of Cheyenne associated with the Storey Boulevard and Summit Drive Extension Project and the East Dell Range Construction Project. – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] An appeal of the Planning Commission denial of the Preliminary Plat for Edgar Subdivision, a replat of a portion of Lot 9, Block 4, View Point North, 2nd Filing, City of Cheyenne, Laramie County, Wyoming (located at 5192 Panorama Drive). (Appeal by applicant pursuant to UDC 2.1.2.c.6.b) – referred to Public Services Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and the Downtown Development Authority to coordinate repair of sidewalks identified as trip hazards (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7960 between the City of Cheyenne and Asphalt Preservation LLC, for additional materials required to complete the 2024 Surface Seal #1 Project (2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$193,638.42). (#7960)

[CA] Contract Modification #1 to Contract #7968 between the City of Cheyenne and Asphalt Preservation LLC, for additional materials required to complete the 2024 Surface Seal #2 Project (2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$192,907.99). (#7968)

[CA] Contract Modification #1 to Contract #7829 between the City of Cheyenne and GBP, LLC to extend the lease agreement for up to an additional 12 months for the property located at 7829 Faith Drive (Recreation Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7989 between the City of Cheyenne and William H. Smith and Associates for design services addressing one additional alleyway for the Cheyenne Three Alleyway Project (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-4-25 for an Agreement between the City of Cheyenne and S&S Builders LLC, for the Dutcher Athletic Complex Restroom and Concession Building Project (2021 Specific Purpose Option Tax Fund, Lottery Proceeds and Recreation Mill Grant). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$687,808.00). (#8055)

[CA] Consideration of Bid #S-24-24 for an Agreement between the City of Cheyenne and Traffic Safety Services, Inc., for the 2024 Thermoplastic Markings #1 Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$244,765.00) (#8056)

[CA] Consideration of Bid #E-1-25 for 2 greens mowers and 3 tee box mowers for the Golf Division (Golf Fund). Motion (per Consent Agenda) carried (accepted bid from LL Johnson Distributing Company in an amount not to exceed \$245,267.89).

[CA] Consideration of Bid #S-1-25 for an Agreement between the City of Cheyenne and Orion Environmental Inc., for the Cheyenne Railcar Project, Bid Package No. 1, Asbestos and Lead Paint Abatement Project (General Fund Reserves and Economic Development Administration Grant). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$473,028.00) (#8057)

[CA] Consideration of Bid #E-11-24 for two (2) trucks for the City of Cheyenne, Weed & Pest Division (Weed & Pest Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-3-25 for four (4) trucks (mid-size, regular cab, crew cab) for the City of Cheyenne, Cheyenne Fire Rescue Department (2019-2022 & 2023-2026 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-2-25 for ten (10) new four-door 2024/2025 Model Utility Police Interceptors for the City of Cheyenne, Cheyenne Police Department (2019-2022 & 2023-2026 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-5-25 for an Agreement between the City of Cheyenne and S & S Builders, LLC for the Pronghorn Crossing Site Infrastructure Project (American Rescue Plan Federal Recovery Funds & other funding to be determined) – referred to Finance Committee.

Transfer of ownership of retail liquor license application filed with the City Clerk's Office for 1734 Partners, LLC d/b/a 1734 Partners, 1734 Meadowland Dr., Cheyenne, WY (license currently held by Old Chicago Taproom II, LLC d/b/a/ Old Chicago #74). Reporting for Finance Committee, Dr. Aldrich advised there was no recommendation from committee. Dr. Aldrich moved to approve, seconded by Mr. Roybal. Motion carried. Voting "yes" – all members of the governing body. Public comment was made by: Michael White and John Johnson, applicant. Comments were made by the following members of the governing body: Dr. Aldrich, Dr. Rinne, Mr. Segrave and Mr. White. Motion carried. Voting "yes" – all members of the governing body with the exception of Dr. Aldrich, Mr. Johnson and Mr. Laybourn voting "no".

Reappointment of Lori Schoene to the Cheyenne Housing Authority Board. Dr. Aldrich moved to approve, seconded by Mr. Esquibel. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Collins who did not vote (Mayoral appointments). Comment was made by the following member of the governing body: Mr. Johnson.

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

The following members of the governing body made comments under Other Business: Mr. Johnson, Dr. Rinne and Mr. Segrave.

Mr. Esquibel moved to meet in executive session Pursuant to Wyoming Statutes §16-4-405(a)(vii), seconded by Mr. Roybal. Motion carried. Voting "yes" – all members of the governing body. Mayor Collins announced members would meet in executive session, not open to the public and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. The following staff members were in attendance: Amber Ash, Mayor's Chief of Staff; Stefanie Boster, City Attorney; Robin Lockman, City Treasurer, Tom Cobb, City Engineer, Charles Bloom, Planning and Development Director and Kris Jones, City Clerk.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:50 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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